JUSTICE ALITO, with whom JUSTICE THOMAS and JUSTICE GORSUCH join, and with whom JUSTICE KAVANAUGH joins as to all but Parts II–C–2 and III, dissenting.

Federal law designates "the Tuesday next after the first Monday in November" as "election day," 3 U. S. C. § 21, and provides that elections for federal office must be held on that date. See 2 U. S. C. §§ 1, 7; 3 U. S. C. § 1. As the Court explains, an election is "the expression of the electorate's choice," *ante*, at 682, but because the electorate is a collective body consisting of many individuals, the way in which it expresses its choice is less straightforward than would be the case if the electorate were a single individual. If the electorate were an individual, it could issue a document declaring that specified men and women were selected to fill the federal offices for which the candidates had competed, but because the electorate is a collective body, it cannot express its selections in that way. Instead, its choices are embodied in the collection of ballots cast by the individuals who make up the electorate. Taken all together, this collection is the equivalent of a single document declaring the winner of each race. This expression of the electorate's choices is conveyed to the responsible election officials when the collection of individual ballots is completed. At that point, the electorate authoritatively expresses its choices, and what the election-day statutes demand is that this authoritative choice be made on election day. If ballots received after election day are added to the set of ballots that dictate the election's outcome, the electorate's choice does not occur on election day, and the federal election-day statutes are violated.

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In this case, we must apply this interpretation of the federal election-day statutes to a Mississippi law that requires state election officials to accept ballots that arrive up to five days after election day. The acceptance of these late-arriving ballots effectively postpones the date on which the electorate's choice is made, and federal law precludes that postponement.

For this reason, I would affirm the decision below, which held that the provision of Mississippi law requiring acceptance of late ballots violates federal law. Because the Court reverses that decision based on a flawed understanding of the election-day statutes, I respectfully dissent.

I

For more than 100 years, federal law has designated "the Tuesday next after the first Monday in November" as the day on which United States Senators and Members of the House of Representatives are "elected."[1] See 2 U. S. C. §7 (setting that date as "the day for the election" of Members of the House of Representatives); §1 (United States Senators "shall be elected" on that same date). Similarly, federal law has long provided that the "electors of President and Vice President shall be appointed" on that date as well. 3 U. S. C. §1.[2] And because the appointment of electors in each State is now decided by popular vote, voters express their preferences for President on that same date.

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Mississippi law allows some voters to cast absentee ballots, Miss. Code Ann. §23–15–713 (Cum. Supp. 2025), and provides that voters may submit these ballots to election officials by mail or common carrier, §23–15–637(1)(a). To be counted, absentee ballots must be postmarked by election day, and state officials must receive them no later than five days "after the election." *Ibid.* Ballots arriving after that date "shall not be counted." *Ibid.* The question we must decide is whether the provision allowing receipt of absentee votes after election day is consistent with federal law.

II

A

As noted, the federal election-day statutes provide that elections for federal office must occur on a specified date,

[1] See 17 Stat. 28 (Representatives); 38 Stat. 384 (Senators).

[2] See 5 Stat. 721.

"the Tuesday next after the first Monday in November." This may seem like a simple rule, but we must address several issues to understand exactly what it means. The first is the meaning of the term "election" as used in the election-day statutes. The majority states that the term "election" means "the expression of the electorate's choice," *ante*, at 682, and I agree with that definition.

The second issue is the identification of the acts that constitute the electorate's expression of its choice, and those acts are the final submission and collection of ballots. These acts must therefore occur on election day.

That is what the election-day statutes required when all voting occurred in person, and the same requirement applies today. Back when all voting occurred in person, the voters went to the polls on election day. They then completed ballots and turned them over to election officials. When the polls closed, those officials had in their possession a fixed collection of ballots, and taken together, those ballots embodied the electorate's collective choice. That expression of the electorate's choice having been made, the election-day statutes did not require that anything more be done before midnight on election day. Of course, no one could know the outcome of the election until those ballots were examined and the valid ballots were counted, but it was not necessary for those steps to be finished on election day because the electorate's choices had been authoritatively expressed.

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Today, not all voting occurs in person on election day. Both voting by mail and early voting have become popular, and respondents do not dispute the lawfulness of these modern practices. Nor do I. But acceptance of these practices cannot change the fact that under federal law, the electorate's collective choice must still be authoritatively expressed on election day.

That requirement is met in a jurisdiction with mail voting or early voting provided that the critical act occurs on election day: the completion of the collection of the ballots that

embody the electorate's collective choice. That is what took place when all voting was done in person, and compliance with the election-day statutes demands that the same occur in a modern election.

The Court disagrees and concludes that the election-day statutes merely require that each individual cast a vote on or before election day. See *ante*, at 685. But if that is all that the election-day statutes require, there is no sense in which the electorate as a whole can be seen as making its choice *on* election day. Rather, the electorate's choice would be made piecemeal over an extended period prior to election day, and that prospect is blatantly contrary to what the election-day statutes demand.

Election day is a specified date, not a span of multiple days. The election-day statutes require that federal elections occur *on* that date. Under the challenged Mississippi law, however, the collection of ballots continues for five more days, and therefore the "election" is not held until the end of that period. Because federal law requires that the election occur *on* election day, it preempts Mississippi's statute.

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B

This conclusion finds support in legal authorities from the period when the federal election-day statutes were enacted. Legal dictionaries of the era described an "election" as including both the casting and receipt of ballots. See 1 J. Bouvier, Law Dictionary and Concise Encyclopedia 979 (8th ed. 1914) ("the act of casting and receiving the ballots"); W. Anderson, A Dictionary of Law 394 (1889) ("[v]oting and taking the votes"). Contemporary state statutes likewise provided that an "election" was not "finished" or "closed" until polls closed, by which point poll workers stopped accepting ballots. *E. g.*, Tenn. Code §§860–861 (1858); Del. Rev. Stat., ch. 18, §§21, 22 (1874); N. C. Code, ch. 16, §2689 (1883). Indeed, under 19th-century election-law parlance, a voter's presentation of a complete ballot constituted a mere "offe[r] to vote,"

and it was not said that the person had "voted" until an election official took custody of the ballot. *E. g.*, Cal. Political Code §§ 1225–1228 (1876); Md. Pub. Gen. Laws Art. 5, § 15 (1878).

State-court decisions from the era corroborate this interpretation. When statutes pegged certain legal consequences to an "election" or "voting," courts held that ballot receipt triggered these consequences. For example, a Pennsylvania court held that a 10-day limitations period for contesting the outcome of a race began running once officials closed the polls on election night, a process that entailed sealing the ballot boxes shut. *Collings's Case*, 2 Luz. L. Obs. 57 (Pa. Quar. Sess. 1861); Act of July 2, 1839, §§ 72–74, 1841 Purdon's Dig. L. Pa. 351. Similarly, when the Supreme Court of Alabama resolved a charge that a defendant illegally voted, the court held that the defendant could not be found liable unless there was evidence that his ballot had been received by a poll worker and placed in the ballot box. *Blackwell* v. *Thompson*, 2 Stew. & P. 348, 352 (1832). As that court put it, "the act of voting is not complete" if "the ballot [is] not received." *Ibid.*; accord, *Goodell* v. *Judith Basin Cty.*, 70 Mont. 222, 234, 224 P. 1110, 1113 (1924) ("under the authorities generally, the act of voting is not completed until the ballot is deposited in the ballot box"). Accordingly, if a State accepts ballots after election day, then the State extends "the period of voting," and therefore the "election," past that date. *Ante*, at 683 (internal quotation marks omitted; emphasis deleted). A 19th-century statute that requires an "election" to occur on a particular day thus requires that the State receive all ballots by that date.

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C

1

Two centuries of historical practice reinforce the proposition that holding an "election" on a particular day means that poll workers had to receive the ballots by that date. From this country's founding until the late 20th century, election-

day ballot collection was the near-uniform practice, with only a few, late-arriving exceptions.

Before the Civil War, nearly all voting occurred in person at polling places, so election day was *ipso facto* the day on which poll workers collected all the ballots.[3] P. Steinbicker, Absentee Voting in the United States, 32 Am. Pol. Sci. Rev. 898 (1938).

This practice did not falter when the cannons rang out at Fort Sumter. Even when the Civil War took soldiers hundreds of miles from their usual polling places, election day still meant ballot-collection day. States took different approaches to ensure that their soldiers could vote while away from home. Some States allowed soldiers to mail their ballots back home, either directly to local officials or to proxies who would cast them at the polls. *E. g.*, 1863 W. Va. Acts pp. 119–120; 1864 N. Y. Laws pp. 549–551. Others sent commissioners to soldiers' camps to distribute absentee ballots, collect them, and then deliver them to officials in each soldier's hometown. *E. g.*, 1864 Conn. Pub. Acts pp. 52–53. A third group of States tasked military officers with administering polling places in the field, complete with ballot boxes and voter-registration lists. On this model, officers collected ballots, checked names off lists, counted votes, and, for some States, even took oaths as election officials. *E. g.*, 1866 Nev. Stats. p. 215; 1864 Kan. Sess. Laws pp. 102–103. Critically, regardless of the method a State used, each State continued to mandate that poll workers, whether on the field or "back home," received soldiers' ballots by election day.[4]

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[3] This was true even in the two States that authorized absentee voting for soldiers in the 1810s. For Pennsylvania and New Jersey, military officers would serve as election judges and inspectors in the field and collect ballots from their States' soldiers on election day. See 1813 Pa. Laws pp. 213–215; 1814 N. J. Laws pp. 16–18.

[4] The majority questions whether it is defensible to treat ballots in field-voting regimes as "received" as soon as military officers collected them on election day, especially since some States did not formally deputize officers as election officials. *Ante*, at 687, n. 4. Regardless of whether such offi-

E. g., 1863 W. Va. Acts p. 120 (requiring that election officials count a mailed-in vote if "received . . . on or before the day of election"); 1866 Nev. Stats. p. 215 (mandating that field-voting polls be open from 8 a.m. to sunset "on the day of election").

The practice of collecting all ballots by election day persisted into the 20th century. To be sure, there were some departures from this norm in the years after Congress enacted the final election-day statute. During the World Wars, for instance, Congress and at least nine States allowed absentee ballots to arrive after election day in certain situations. See, *e. g.*, 1918 Md. Laws p. 130; 58 Stat. 146 (noting that "any extension of time for the receipt of absentee ballots permitted by State laws shall apply" to federal "war ballot[s]" in World War II). Yet that practice returned to the margins within a few decades. By 1977, a report from the Department of Defense listed only two States as still allowing ballots to arrive after election day. See Overseas Absentee Voting: Hearing on S. 703 before the Senate Committee on Rules and Administration, 95th Cong., 1st Sess., 33–34 (1977). These short-lived outlier rules thus shed little light on the original meaning of "election" in the election-day statutes.

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Likewise, although post-election-day deadlines have become more widespread in the last five decades,[5] these devel-

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cers were "deputized," however, these officers (unlike a postal worker) often performed the same kinds of functions that poll workers performed back at local polling places. Compare 1866 Nev. Stats. pp. 214, 216–217, with *id.*, at 215. It is therefore reasonable to conclude that ballots were "received" on election day in field-voting systems. Indeed, the majority describes field voting in this way just one footnote earlier. See *ante*, at 687, n. 3 (noting that "ballot casting and ballot receipt" in field-voting systems occurred "simultaneous[ly]" on election day).

[5] See National Conference of State Legislatures, Table 11: Receipt and Postmark Deadlines for Absentee/Mail Ballots (May 18, 2026), https://www.ncsl.org/elections-and-campaigns/table-11-receipt-and-postmark-

opments postdate the last election-day statute by over 50 years and the first statute by over a century. These late-in-time practices therefore count for little when discerning the timing restrictions that Congress imposed when it enacted those statutes. See *Pung* v. *Isabella County*, 609 U. S. 30, 38 (2026).

In sum, from this Nation's founding until the last few decades of the 20th century—a period that spans the enactment of all three election-day statutes—having an "election" on a particular day meant completing ballot collection on that day.

2

The majority brushes aside this impressive historical record because respondents have not offered direct evidence that state actors believed that federal law required these often-burdensome procedures and timelines. *Ante*, at 688–689. For all we know, the majority reasons, the States might have insisted on receiving ballots by election day for their own independent reasons. *Ibid.*

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This argument withers on examination, especially as applied to Civil War practices. The States were acutely aware of the federal election-day statutes, and they abandoned practices that they had previously used and presumably preferred in order to comply with them. As the majority notes, before 1845, States had "total control over the timing" of elections for the House of Representatives and substantial leeway to select the date on which voters chose Presidential electors. *Ante*, at 678. States took advantage of this freedom by holding elections on a variety of dates. *Ibid.* After 1845, however, States abandoned the practices they previously preferred and held elections on the date Congress specified. *Ibid.* The majority's argument therefore boils down to this: States complied with what they understood the

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deadlines-for-absentee-mail-ballots (archived at https://perma.cc/6NB3-GPGY).

federal election-day statutes to require; they did not believe that those laws required that ballots be received by election day; but they nevertheless eschewed the freedom they had asserted before 1845 and voluntarily imposed extraordinary burdens on soldiers and election officials during the Civil War to ensure that ballots were received by the federally imposed election day. And they did all this, the majority speculates, because "extending the deadline" for the receipt of ballots "might not have even occurred to them." *Ante*, at 689.

To say that this is not the most likely explanation of States' thought processes would be "a delicately put understatement." *Ante*, at 687. The notion that extending ballot-receipt deadlines for soldiers might never have crossed the minds of legislators during the Civil War is hard to take seriously. States valued their uniformed citizens' right to vote and wanted to ensure that soldiers had a voice in selecting the officials who would direct the deadly conflict in which they were engaged.[6] See, *e. g.*, 1864 Ky. Acts p. 122 (conferring on soldiers a statutory right to vote "as fully as if such [soldiers] were present" at their usual polling place on election day); 1864 N. H. Laws p. 3061 (similar). And States surely knew that it would take time for ballots to make their way from the front lines back to soldiers' home precincts. States likewise knew that the alternative approach of requiring soldiers to simulate polling places in the field on election day would be burdensome amid ongoing military engagements. Most importantly, States knew how to extend deadlines or grant exemptions to accommodate soldiers whose active service in the Civil War made it difficult for them to fulfill their civic and legal duties. See, *e. g.*, 1862 Ky. Acts p. 67 (giving soldiers up to an extra year to file an answer in pending civil actions); 1861 Wis. Laws ch. 309, p. 319 (sus-

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[6] It is irrelevant to the question presented that some States did not adopt absentee voting in the Civil War at all. Contra, *ante*, at 688, n. 5. What is relevant is that, where States did endeavor to protect soldiers' ability to vote, States required that ballots be received by election day.

pending civil proceedings in cases where the defendant is serving in the military); 1862 Conn. Pub. Acts p. 74 (exempting soldiers from various state taxes for five years following honorable discharge); 1865 Minn. Laws pp. 58–59 (exempting soldiers from service of civil process and tolling statutes of limitations for claims against soldiers). Given these examples, it strains credulity to suggest that the thought of extending ballot-receipt deadlines simply never occurred to any State during the Civil War.

In any event, the majority does not explain what sort of evidence respondents would need to offer in order to "precisely tie" the States' practices "to the text of the election-day statutes." *Ante*, at 687 (internal quotation marks omitted). Readers are left guessing what kind of evidence suffices. Perhaps the majority is looking for legislative floor statements or committee reports stating: "We would really like to give the boys in the field some extra time for their ballots to arrive, but alas, the Presidential Election Day Act of 1845 prohibits us from doing so." But see *FS Credit Opportunities Corp.* v. *Saba Capital Master Fund, Ltd.*, 608 U. S. 608, 620–621 (2026) (discounting the probative value of such evidence). Regardless, the majority places the burden on the wrong side. Given the infeasibility of the majority's alternative explanations for States' Civil War absentee-voting practices, it would be more appropriate to demand floor statements or a committee report stating: "We don't think the federal election-day law requires the receipt of ballots by election day, but we will nevertheless relinquish our previously asserted freedom over the timing of elections and voluntarily take on the burden and expense of ensuring that the ballots of our embattled boys on far-flung battlefields and camps arrive here by the end of election day." Mississippi offers no evidence of this sort. More important, Mississippi does not identify a single State that accepted late-arriving ballots during the Civil War even though States had strong logistical incentives to be lenient on this point.

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The majority separately worries that using historical practice to interpret the phrase "election" might "tra[p]" States' election practices "in amber." *Ante*, at 689 (internal quotation marks omitted). But the policy of collecting all ballots by election day is entirely consistent with—indeed, is compelled by—the text, context, and history of the election-day statutes, and one reason for codifying legal rules in a statute is to "trap" those rules "in amber" until they are amended. Moreover, the majority's worries are exaggerated. All agree that the relevant provisions of the election-day statutes regulate only "the time of the election." *Ante*, at 681 (quoting *Foster* v. *Love*, 522 U. S. 67, 71–72 (1997)). So to the extent that historical practice informs the interpretation of these statutes, it informs only the timing of election processes, not their manner. See also U. S. Const., Art. II, § 1, cl. 2 (giving Congress the power to regulate the timing of States' Presidential elections, but not their manner). One may rely on historical practice to conclude that ballots must arrive by election day without committing to the view that States must retain every trapping of 19th-century elections.

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In short, although the majority attempts to fend off two centuries of American election practice, the takeaway from this history is clear. When Congress enacted the three election-day statutes, having the "election" on a particular date meant that ballots would be collected by that date.

D

Having considered text, legal context, and historical practice, I turn to precedent. Although few judicial decisions interpret the election-day statutes, those precedents favor respondents' position.

The most on-point precedent is the Supreme Court of Montana's 1944 decision in *Maddox* v. *Board of State Canvassers*, 116 Mont. 217, 149 P. 2d 112. *Maddox* concerned a Montana statute that allowed the State's servicemembers to vote absentee in federal elections as long as officials received their

ballots by the fourth Monday in December, several weeks after election day. *Id.*, at 221, 149 P. 2d, at 114; 1943 Mont. Laws p. 172. The Montana court held that "in so far as [that provision] purports to extend beyond the election day the time within which voters' ballots may be received by the election officials . . . it is in conflict" with the federal election-day statutes. 116 Mont., at 224, 149 P. 2d, at 115. Consistent with the election-law principles discussed above, the court recognized that a ballot was not "cast" until election officials received it. *Id.*, at 223–224, 149 P. 2d, at 115; see *supra*, at 701–702. And because federal law "requires the electing to be done on election day," the court held that Montana's post-election-day deadlines were preempted. 116 Mont., at 224, 149 P. 2d, at 115. Thus, the only other high-court decision to address the question presented favors respondents' position.

The majority casts aside *Maddox* on two unpersuasive grounds. First, the majority suggests that *Maddox* turned on state law. *Ante*, at 693–694. But *Maddox* cited federal law and Congress's constitutional powers under the Elections and Electors Appointment Clauses in holding that Montana's ballot-receipt rules were "in conflict with" a "congressional Act." 116 Mont., at 224, 149 P. 2d, at 115; see also *id.*, at 222, 149 P. 2d, at 114 (explaining that "states have no power to interfere" with the federal election-day statutes). That state law also dictated the same conclusion does not diminish the court's federal-law analysis.

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Second, the majority highlights that a one-Justice concurrence and a one-Justice dissent did not read *Maddox* as foreclosing post-election-day ballot receipt. *Ante*, at 694. But separate writings are "generally not the best source of legal advice" on the scope of a court's holding, *Students for Fair Admissions, Inc.* v. *President and Fellows of Harvard College*, 600 U. S. 181, 230 (2023), and that principle is particularly applicable here. Neither separate opinion discussed federal law at all, and the concurrence objected to post-

election-day ballot receipt even more strongly than did the majority opinion. See 116 Mont., at 229, 149 P. 2d, at 117 (Morris, J., concurring) (predicting that accepting ballots after election day would be "almost universally condemned"); *id.*, at 229–232, 149 P. 2d, at 117–119 (Erickson, J., dissenting in part).

Consider next our decision in *Foster* v. *Love*, 522 U. S. 67. There, this Court concluded that the election-day statutes preempted an arrangement under which a congressional candidate who performed well enough in a primary could win election to office outright without facing a further contest. In invalidating this arrangement, *Foster* held that the election-day statutes' use of the word "election" meant the "combined actions of voters and officials meant to make a final selection of an officeholder." *Id.*, at 71. So, although *Foster* did not "isolat[e] precisely what acts a State must cause to be done on federal election day," *id.*, at 72, the Court did contemplate that the election-day statutes require more than just unilateral voter action. In other words, *Foster* explained that an "election" does not occur on election day unless both voters *and* officials play a role.

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The majority contravenes this portion of *Foster* by holding that a State satisfies the election-day statutes so long as voters complete their part of the electoral process (*i. e.*, putting ballots in mailboxes), even if officials do not take their first steps in effectuating the "final selection" of a candidate (*i. e.*, receiving ballots) until days or weeks later.[7] Thus, *Foster* cuts against the majority's position.

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[7] The majority maintains that it honors *Foster*'s "combined actions" definition. In the majority's view, States may satisfy that definition by "establishing the rules for the election" or "providing ballots" in the lead-up to election day. *Ante*, at 693. But the majority's view leads to implausible outcomes. On the majority's reading of *Foster*, as soon as States have "provid[ed] ballots" and absentee voters have bubbled them in, there has been "combined actions of voters and officials . . . to make a final selection," even if voters do not submit their ballots in the mail until weeks later. See *Republican National Committee* v. *Wetzel*, 120 F. 4th 200, 207 (CA5 2024) (offering similar hypotheticals).

III

The majority's remaining arguments are patently insufficient to overcome what text, context, history, and precedent establish. First, the majority notes that several provisions of the Uniformed and Overseas Citizens Absentee Voting Act of 1986 (UOCAVA) cross-reference state-law deadlines for ballot receipt. See, *e. g.*, 52 U. S. C. §20303(b)(3). The majority next invokes the interpretive canon that counsels in favor of reading statutes in a way that accommodates later legislative enactments. *Ante*, at 683–684; see *West Virginia Univ. Hospitals, Inc.* v. *Casey*, 499 U. S. 83, 100–101 (1991) (noting that this substantive canon does not reveal "what the lawmakers must have had in mind" but rather advances the normative value of consistency across the U. S. Code). The majority then concludes that the election-day statutes must not impose federal ballot-receipt deadlines because UOCAVA's cross-references to state-law deadlines "would make little sense" otherwise. *Ante*, at 684.

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This argument falters. In any statutory-interpretation case, a court's goal is to determine what the statute meant at the time it became law. See A. Scalia & B. Garner, Reading Law 78 (2012). Statutes enacted decades after the fact are seldom probative of this meaning. See *West Virginia Univ. Hospitals*, 499 U. S., at 100–101 ("how could an earlier Congress know what a later Congress would enact?"). The threshold for interpreting a later-enacted statute as controlling is accordingly steep: A litigant must show that such an interpretation is necessary to avoid making "nonsense out of the *corpus juris*." *Id.*, at 101. That showing is not satisfied here. It is easy to make sense of UOCAVA's cross-references to state-law ballot-receipt deadlines without eschewing a federal election-day deadline. As the majority acknowledges, UOCAVA applies to primaries, which are not subject to the election-day statutes at all. See *ante*, at 691–692. For those elections, state law supplies the only ballot-receipt deadlines, so UOCAVA's cross-references to them make perfect sense even if the election-day statutes set a federal

deadline for general elections.[8] The majority contends that this interpretation "does not work" because UOCAVA does not distinguish between these kinds of elections. *Ibid.* But that detail does not suffice to render UOCAVA's cross-references "nonsense," as would be needed for this Court to treat UOCAVA as controlling our interpretation. Because respondents have shown that UOCAVA can be sensibly squared with their interpretation of the election-day statutes, UOCAVA does not foreclose their position.[9]

The majority separately suggests that an election-day ballot-receipt deadline would call into question the validity of early voting, as early-arriving ballots would not be received *on* election day. *Ante*, at 689. But, to reiterate, it is the electorate's decision, not the voter's, that constitutes the "election." And no matter when a State receives voters' individual ballots, the electorate's choice is not made until all ballots have been cast and collected. So long as that occurs on the Tuesday after the first Monday in November, the election-day statutes are satisfied.

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IV

Not only is today's decision inconsistent with statutory text, legal context, historical practice, and precedent; it also threatens to produce lamentable consequences. The majority's holding spawns a slurry of troubling election-law questions and risks further undermining Americans' confidence in election integrity.

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[8] Additionally, when Congress enacted UOCAVA, at least one State had a pre-election-day deadline. See 1986 Miss. Laws p. 832. Thus, UOCAVA's cross-references could also reflect the fact that States can set earlier deadlines.

[9] The majority further argues that respondents' proposed reconciliation fails because one section of UOCAVA applies to general elections only. *Ante*, at 692 (citing 52 U. S. C. §20304(b)(1)). But that section of UOCAVA, unlike others, does not cross-reference state-law deadlines at all.

A

The majority holds that a State complies with the federal election-day statutes if it requires that ballots are postmarked by election day and received within five days after. But this ostensibly simple holding obfuscates the many unsettling questions that the majority's position entails. For instance, do the federal election-day statutes impose *any* ballot-receipt deadlines? Mississippi counts absentee ballots that arrive up to five days after the federal election day, but nothing in the majority opinion turns on that 5-day duration. Indeed, some States will count mail-in ballots that arrive as late as 21 days after election day. See Wash. Rev. Code § 29A.60.190 (2025). If the "election" is complete when voters fill out their ballots and send them on their way, may States eliminate ballot-receipt deadlines entirely? It appears that the only federal backstops for ballot receipt are the date when newly elected Representatives and Senators must report for their swearing in and the date when Presidential electors must cast their votes.

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Next, would it suffice under federal law if a State authorized voters to tender their ballots to any third party by election day? Mississippi counts late-arriving absentee ballots only if they are sent using the Postal Service or a common carrier. Miss. Code Ann. § 23–15–637(1)(a). But nothing in the election-day statutes gives those entities special treatment. Could a State therefore count late-arriving ballots if they are delivered by some other intermediary? How about a relative of the voter? A helpful neighbor? An Uber driver who agrees to serve as a courier?[10] A "ballot harvester" affiliated with a political party or interest group? See *ante*, at 695 (not disputing that the election-day statutes would allow a regime where voters could give their ballots to these intermediaries on election day for later delivery).

[10] See Uber Courier, https://www.uber.com/us/en/item-delivery/ (archived at https://perma.cc/HPE6-6YWZ).

May States use something other than a ballot's postmark to determine when someone voted? Mississippi requires that an absentee ballot be postmarked on or before election day, but other States do not. See, *e. g.*, Cal. Elec. Code Ann. § 3020(b)(2) (West Supp. 2026) (relying on the date that a voter signed the ballot envelope). Do those States' laws comply with the election-day statutes? What happens if a voter deposits a ballot in a U. S. mailbox on election day after the last mail pickup for the day?

What happens if a courier offers a recall service? The majority's rule apparently rests on the notion that a voter has made a "final *selection* of an officeholder" once the voter tenders a ballot to the party who will deliver it. *Ante*, at 683 (quoting *Foster*, 522 U. S., at 71). But the Postal Service allows its customers to recall mail mid-transit, as do many private parcel services. See, *e. g.*, United States Postal Service, Mailing Standards of the United States Postal Service, Domestic Mail Manual § 507.5 (Apr. 6, 2026). Given that fact, is a voter's "selection" truly "final" when he or she puts a ballot in the mailbox? The majority dodges this question, offering the passing suggestion that Mississippi's statute would be preempted only insofar as it allows voters to recall their ballots. *Ante*, at 697. May the Fifth Circuit hold as much on remand? Must state law expressly prohibit voters from using recall services? Do the Postal Service's or FedEx's mail-recall policies violate the election-day statutes as applied to absentee ballots?

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For state legislatures trying to understand what the election-day statutes allow, the majority's decision opens Pandora's box.

B

Finally, today's decision leaves open opportunities for voter fraud that may further undermine Americans' faith in the integrity of this country's elections. Diverse sources have recognized that mail-in ballots increase the potential for fraud. In 2005, a committee chaired by former President

Jimmy Carter and former Secretary of State James Baker found that absentee voting was "the largest source of potential voter fraud" in American elections. Commission on Federal Election Reform, Building Confidence in U. S. Elections 46 (Sept. 2005). Likewise, in *Crawford* v. *Marion County Election Bd.*, 553 U. S. 181 (2008), Justice Stevens recognized that the risk of voter fraud "perpetrated using absentee ballots" is "real" and "could affect the outcome of a close election." *Id.*, at 195–196 (lead opinion). Some *amici* in that case similarly explained that when voter fraud occurs these days, it "generally takes the form of organized fraud such as . . . use of fraudulent absentee or mail-in ballots."[11] Brief for Brennan Center for Justice et al. as *Amici Curiae*, O. T. 2007, No. 07–21 etc., p. 19 (citing L. Minnite & D. Calla-

[11] Examples of voter fraud using absentee ballots in recent decades are not hard to come by. See, *e. g.*, North Carolina State Board of Elections, State Board Unanimously Orders New Election in 9th Congressional District (Feb. 25, 2019), https://www.ncsbe.gov/news/press-releases/2019/02/25/state-board-unanimously-orders-new-election-9th-congressional-district (archived at https://perma.cc/7QFU-RYL4) (ordering a new congressional election after discovering a "coordinated, unlawful and substantially resourced absentee ballot scheme" in a 2018 race (internal quotation marks omitted)); *United States* v. *McCranie*, 169 F. 3d 723, 724–726 (CA11 1999) (detailing how Georgia courts had voided an election after finding "widespread" absentee-ballot fraud involving vote buying, vote selling, multiple voting, felon voting, and deceased-person voting); *In re Protest of Election Returns and Absentee Ballots in Nov. 4, 1997 Election for City of Miami*, 707 So. 2d 1170, 1172, 1174 (Fla. App. 1998) (*per curiam*) (voiding all absentee ballots cast in an election because "massive absentee voter fraud . . . literally and figuratively . . . stole the ballot from the hands of every honest voter in the City of Miami" (internal quotation marks omitted)); *Pabey* v. *Pastrick*, 816 N. E. 2d 1138, 1154 (Ind. 2004) (finding "pervasive and widespread deliberate conduct that perverted the absentee voting process and compromised the integrity and results of th[e] election" (internal quotation marks omitted)); *Bradley* v. *Perrodin*, 106 Cal. App. 4th 1153, 1165–1170, 131 Cal. Rptr. 2d 402, 412–415 (2003) (affirming the annulment of an election where a candidate fraudulently registered nine non-citizens and helped them illegally vote using absentee ballots).

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han, Securing the Vote: An Analysis of Election Fraud 14–15 (2003)).

It is not difficult to understand why. When someone votes by mail, it is harder for officials to verify the identity of the person requesting and completing the ballot. Mail voting also presents a greater opportunity for voter manipulation, a more vulnerable chain of ballot custody, and a diminished ability to detect improprieties in real time.[12] Today's decision compounds these vulnerabilities. Allowing absentee ballots to pour in over the days and weeks after election day, by which point preliminary election returns are being publicly reported, creates greater opportunity for fraud and risks further undermining the public's confidence in election integrity. As JUSTICE KAVANAUGH has explained, when "thousands of absentee ballots flow in after election day and potentially flip the result of an election," "charges of a rigged election could explode." *Democratic National Committee* v. *Wisconsin State Legislature*, 592 U. S. 1039, 1047 (2020) (concurring opinion) (internal quotation marks omitted).

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Likewise, it is not difficult to foresee the types of fraught situations that the counting of late mail-in ballots may lead to. Suppose that the outcome in a close Presidential election hangs on the final vote in a State that allows officials to count mail-in ballots received up until two days before its Presidential electors must meet to submit their votes. And suppose that, when all the ballots cast in person are counted by the morning after the election, one of the candidates is ahead by 15,000 votes. As the mail-in ballots arrive and are counted, that lead alternatingly dwindles and swells. By Thanksgiving, the lead of the candidate who has been ahead since election day dips to just 1,500 votes. This figure holds

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[12] See MIT Election Data + Science Lab, Voting by Mail and Absentee Voting, Administrative Issues (Feb. 28, 2024), https://electionlab.mit.edu/research/voting-mail-and-absentee-voting#content-section-113 (archived at https://perma.cc/8WEZ-89T8).

until a few days before the State's electors need to vote, when one last tranche of mail-in ballots puts the opposing candidate in the lead by, say, 87 votes.[13]

It is not pleasant to imagine what this course of events would mean for popular faith in the integrity of that election and of our electoral process in general. Even in the absence of partisan rhetoric, drawn-out ballot-counting "induces a large, significant decrease" in Americans' trust in elections.[14] By allowing States to continue receiving new ballots during these drawn-out processes, today's decision will only exacerbate voters' distrust.

In response to these concerns, the majority counters that the appearance of fraud could persist under respondents' interpretation of the statute. *Ante*, at 696. But that contention is as nonresponsive as it is unremarkable. No statutory scheme will eliminate concerns about fraud entirely, and nobody claims that an election-day ballot-receipt deadline would do so. Nevertheless, as the majority acknowledges, election-timing laws are one tool that governments have traditionally used to reduce opportunities for voter fraud. *Ante*, at 678–679. Indeed, concerns about fraud were a leading

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[13] This fact pattern is not very far-removed from reality. An acclaimed biography of former President Lyndon Johnson detailed how the Senate campaign that propelled his political career was marred by late-arriving votes that changed the outcome of the race. See generally R. Caro, The Years of Lyndon Johnson: Means of Ascent (1990). In 1948, Johnson eked out a razor-thin victory over his primary opponent in a runoff, all but guaranteeing that he would win the general election in Texas. Johnson's victory was made possible through the election-flipping addition of 202 votes to the tally several days after polls had closed. Two hundred of those late-arriving votes were cast for Johnson, who won the race by just 87 votes. In the decades since, weighty evidence has come to light casting serious doubt on those votes' legitimacy. *Id.*, at xxxi, 316–317, 328–329, 375–402. Although a complete account of what occurred in that election has been lost to history, the incident illustrates the real risks that today's decision entails.

[14] M. Lockhart et al., Voters Distrust Delayed Election Results, But a Prebunking Message Inoculates Against Distrust, 3 PNAS Nexus 1 (2024).

cause of the enactment of the federal election-day statutes. *Ibid.*

It is undeniable that a prohibition on counting late-arriving ballots would provide an additional hurdle for bad actors seeking to stuff ballot boxes when early election results suggest a tight race. The majority incorrectly removes this safeguard from federal law.

* * *

Today's decision is inconsistent with the terms of the election-day statutes, contemporary election-law principles, two centuries of historical practice, and the case law on the question presented. It opens up and fails to resolve a host of questions for state election officials and courts. And it creates a serious risk of further undermining public confidence in our elections and our system of self-government. I therefore respectfully dissent.

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